



THE ROSE-BARRIE FOUNDATION

Individual Contributor Licence Agreement

Version 1.0

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The Foundation undertakes that every Contribution it accepts will be published and remain available under an Open Licence.

The Foundation may in addition grant commercial licences on other terms. It may not use the rights granted under this agreement to cease publishing Your Contribution under an Open Licence.

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7.1 Trigger. If the Foundation ceases to make Your Contribution available under an Open Licence for a continuous period of twelve (12) months, You may give the Foundation written notice specifying the failure.

7.2 Cure. The Foundation has ninety (90) days from receiving the notice to resume making Your Contribution available under an Open Licence.

7.3 Effect. If the Foundation does not cure within that period, the right to sublicense Your Contribution on terms other than an Open Licence, granted in section 3, terminates. All other rights granted under this agreement continue, including the patent licence in section 4.

7.4 Third parties are not affected. Any licence already granted by the Foundation to a third party before termination under section 7.3 continues in full force. Reversion is prospective only and does not disturb any licence already granted, whether an Open Licence or a commercial licence.

7.5 Scope. *Reversion under this section affects only Your Contributions. It does not transfer the Foundation's projects, its other rights, or any stewardship role, and it does not affect contributions made by any other person.*

8. DE MINIMIS CONTRIBUTIONS

This agreement is not required for a Contribution that consists solely of a correction of a typographical error, a formatting change, or a change of fewer than fifteen (15) lines that does not add new functionality or design. Such Contributions are accepted under the project's Open Licence.

9. GENERAL

9.1 This agreement is governed by the laws of British Columbia and the laws of Canada applicable in British Columbia.

9.2 The Foundation is under no obligation to accept, use or include any Contribution.

9.3 You agree to notify the Foundation if any statement in section 6 becomes inaccurate.

9.4 This agreement may be signed electronically, including by the Foundation's contributor agreement tooling, and such signature has the same effect as a written signature.

AGREED

Full name:

Username / handle:

Email:

Country:

Signature

Date

WHY THIS AGREEMENT EXISTS

A short, plain explanation. This page is not part of the agreement.

Do I give up my copyright?

No. You keep it. Section 2 says so explicitly. You are granting a licence, not transferring ownership, and you can continue to use your own work however you like.

Why does the Foundation need the right to sublicense?

The Foundation is not a registered charity. It cannot issue tax receipts and it is not eligible for most grant funding. Selling commercial licences — letting a company use the designs without publishing their own changes — is one of the few ways it can pay for research. That requires the ability to grant terms other than the open licence.

Could you take the project closed?

No. Section 5 commits the Foundation to keep publishing every accepted contribution under an open licence. That commitment also sits in the Foundation's bylaws, which are entrenched and cannot be changed by ordinary resolution. And the work already published under CERN-OHL-S and GPL-3.0 is irrevocable — anyone can fork it, permanently, whatever happens to the Foundation.

What happens if you break that promise?

Section 7. If the Foundation stops publishing your contribution openly for a year, you can give notice. If it does not fix that within ninety days, the commercial sublicensing right over your work ends. Existing licences already granted to other people are not disturbed — otherwise nobody could safely rely on a licence from the Foundation.

Does reversion give the project to the contributors?

No, and it is worth being clear about that. Rights revert to each contributor over their own contributions only. There is no transfer of the project or of stewardship. What reversion does is make closing the project pointless rather than change who runs it.

Do I need to sign this for a typo fix?

No. Section 8 exempts typos, formatting and changes under fifteen lines that add no new functionality or design.

What if I contribute as part of my job?

Check whether your employer owns what you write. If they do, you need their permission or a waiver before submitting. Section 6(b) asks you to confirm this.

Is there a patent trap here?

Section 4 is the standard Apache-style grant, narrowed to claims necessarily infringed by your own contribution. It also terminates for anyone who sues over the project. The Foundation does not file patents on work it publishes — see its Publication Policy.

Questions before signing are welcome. Open an issue, or contact the Foundation directly.